

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 27, 2022, a complaint was filed with the Spanish Agency for Data Protection against the AYUNTAMIENTO DE MADRID with NIF P2807900B (hereinafter, the complained party, Ayuntamiento de Madrid, or the Ayuntamiento). The reasons for the complaint are as follows: The complainant states that they were reported by the Ayuntamiento de Madrid for committing two traffic violations on the M30 communication route (Calle 30). Upon being notified of the complaint, they observed that their image had been processed by an automated image capture system linked to a speed measurement system (radar).

According to the complainant, the radar that captured their image does not comply with the parameters established in the Regulation for the development and execution of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places. In this regard, they allege that the sole additional provision of the aforementioned Regulation establishes the authorization by the competent Public Administration for the installation and use of the devices.

The radar was installed by the General Directorate of Traffic when the road was within its scope of competencies. In 2004, the competence was transferred to the Ayuntamiento de Madrid.

The complainant requested from the complained party and the General Directorate of Traffic the resolution that enables the installation of the device. This resolution has not been provided to the complainant; for this reason, they conclude that there are reasonable indications that the complained Administration has processed their personal data through an automated image capture system linked to a speed radar, violating the obligation to have prior administrative authorization.

Furthermore, they conclude that the complained party has violated Articles 5 and 6 of the GDPR.

Along with their complaint letter dated October 27, 2022, they provide, in addition to the two traffic violation reports from the Ayuntamiento de Madrid, the following documents:

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1. Report of inadmissibility to process from the General Directorate of Municipal Police dated September 1, 2022, regarding a request for access to public information made by the complainant under Law 19/2013, of December 9, on transparency, access to public information, and good governance, requesting a copy of the legal instrument from the Ayuntamiento de Madrid that authorizes the installation and use of the image capture device linked to the speed radar, as provided in the sole additional provision of Royal Decree 596/1999, of April 16.

2. Notification of a Resolution from the Technical General Secretariat of the Government Area of Spokesperson, Security, and Emergencies in the public information access file ***EXPEDIENTE.1 dated September 2, 2022, by which the request for access to public information made by the complainant is inadmissible under Law 19/2013, of December 9, on transparency, access to public information, and good governance, and Law 10/2019, of April 10, on Transparency and Participation of the Community of Madrid, as recorded in the report issued by the General Directorate of Municipal Police dated September 1, 2022.

3. An Official Letter from the General Secretariat of the General Directorate of Traffic dated September 9, 2022, prepared in response to a request for access to public information under Law 19/2013, of December 9, on transparency, access to public information, and good governance, requesting a copy of the legal instrument from the General Directorate of Traffic, as the authority responsible for traffic regulation, that authorizes the installation and use of the image capture device linked to the speed radar, as provided in the eighth additional provision of Organic Law 4/1997, of August 4.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the Ayuntamiento de Madrid for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on December 21, 2022, as evidenced by the acknowledgment of receipt in the file.

On January 19, 2023, a response letter was received by this Agency, which included two reports in response to the complaint filed.

A. The report from the Subdirector General for Traffic Fines Management of the Ayuntamiento de Madrid dated December 29, 2022, concludes by stating that, in the opinion of this administrative body, the data protection regulations have not been violated, nor has any incident occurred that would justify the complaint, for the following reasons:

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1. Since the year 2018, the installation and use of radars on the roads within the municipal term of Madrid has been provided for in the Sustainable Mobility Ordinance, approved by the Plenary of the City Council of Madrid, whose normative rank is superior to that of the resolution referred to by the claimant. Therefore, there is sufficient normative support for the installation of cameras without the need for a specific resolution for this purpose.

2. The purpose of the installation and use of radars in the City Council of Madrid complies with the provisions of Royal Legislative Decree 6/2015, of October 30, which approves the consolidated text of the Law on Traffic, Motor Vehicle Circulation, and Road Safety (LSV) and the Sustainable Mobility Ordinance, as these devices are used for capturing violations provided for in the LSV, and the instruments comply with the metrological control regulations, regularly passing verification tests, as evidenced by the certificates issued at each moment by the Spanish Metrology Center.

3. The file of the violations captured through the radar that is the subject of the claimant's complaint is declared before the AEPD. The claimant was informed of the existence of this file, its purpose, and its responsible party.

4. Fixed radars and their locations can be consulted on the municipal electronic headquarters.

B. The Report of the Director General of the Municipal Police dated January 18, 2023, indicates:

1. The ownership of the road where the radar is located was transferred to the City Council of Madrid in 2004.

2. Royal Decree 596/1999, of April 16, states that the validity of the resolution for the installation of these devices will be indefinite as long as the circumstances that motivated it do not change. Given that the purpose of the capturing means remains the same (traffic surveillance and discipline), it does not require renewal of the resolution that was issued by the Ministry for its installation.

3. The processing carried out for the surveillance and control of road traffic is legitimized as it is necessary for the fulfillment of a legal obligation applicable to the data controller, as well as for the fulfillment of a mission carried out in the public interest or in the exercise of public powers.

THIRD: On January 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy of the processing

Article 6 of the GDPR, which regulates the legality of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

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2. Member States may maintain or introduce more specific provisions in order to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, letters c) and e), by more precisely setting specific processing requirements and other measures that ensure lawful and fair processing, including other specific processing situations under Chapter IX.

3. The basis for the processing indicated in paragraph 1, letters c) and e), must be established by:

- a) Union law, or
- b) The law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, concerning the processing referred to in paragraph 1, letter e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, including, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific processing situations under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union law or the law of the Member States that

constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any relationship between the purposes for which the personal data were collected and the purposes of the intended further processing;
- b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data related to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences for the data subjects of the intended further processing;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

III

Conclusion

The Eighth Additional Provision of Organic Law 4/1997, of August 4, regulating the use of video cameras by the Security Forces and Corps in public places, establishes:

"The installation and use of video cameras and any other means of capturing and reproducing images for the control, regulation, surveillance, and discipline of traffic shall be carried out by the authority responsible for traffic regulation for the purposes provided in the articulated text of the Law on Traffic, Circulation of Motor Vehicles, and Road Safety, approved by Royal Legislative Decree 339/1990, of March 2, and other specific regulations in the matter, and subject to the provisions of Organic Laws 5/1992, of October 29, on the Regulation of Automated Processing of Personal Data, and 1/1982, of May 5, on Civil Protection of the Right to Honor, Personal and Family Privacy, and One's Own Image, within the framework of the principles of use of the same provided in this Law."

Likewise, the sole additional provision of Royal Decree 596/1999, of April 16, approving the Regulation for the development and execution of Organic Law 4/1997, of August 4, regulating the use of video cameras by the Security Forces and Corps in public places, provides:

"Applicable regime for video cameras for the surveillance, control, and discipline of traffic"

1. The installation and use of video cameras and any other means of capturing and reproducing images for the control, regulation, surveillance, and discipline of traffic on public roads shall be carried out in accordance with the provisions of the eighth additional provision of Organic Law 4/1997 and this provision.

2. It shall be the responsibility of the public administrations with competence for traffic regulation to authorize the installation and use of the devices referred to in the previous paragraph.

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3. The resolution ordering the installation and use of fixed capture and reproduction devices shall generically identify the public roads or segments thereof whose image may be captured, the measures aimed at ensuring the preservation of the availability, confidentiality, and integrity of the recordings or records obtained, as well as the body responsible for their custody and for resolving requests for access and cancellation.

The validity of the resolution shall be indefinite as long as the circumstances that motivated it do not change.

In the scope of the General Administration of the State, the resolving authority shall rest with the Director General of Traffic.

(...)

For its part, the Sustainable Mobility Ordinance of the City Council of Madrid (hereinafter, OMS) establishes the following:

The third additional provision of the OMS, relating to the Protection of personal data, provides:

“Protection of personal data.

Within the framework of this ordinance, special protection shall be given to personal data contained in the information that the City Council of Madrid and its linked or dependent public bodies obtain and use, ensuring, in all cases, the rights inherent to the protection of personal data, for which security measures will be established to prevent any personal traceability not covered by the purpose or consent.

In general, compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council and Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights shall be observed, especially regarding the principles of data protection, legitimization of processing, rights of affected individuals, data protection by design and by default, data processors, security breaches, and security measures in accordance with the National Security Scheme (ENS) resulting from the corresponding risk analyses and, where applicable, impact assessments.”

Article 13, which regulates automated means of traffic management, states:

“Article 13. Automated means of traffic management.

1. The City Council of Madrid shall employ technological means both to collect real-time information on pedestrian traffic and the circulation of all types of vehicles and to manage urban mobility in a safer, more efficient, sustainable, and intelligent manner.

2. The Mobility Management Center (CGM) implements the technological control of information panels, cameras, loops, sensors, and other technical elements and functionalities that allow for the development of science and technology.”

Article 15, relating to technical means of monitoring traffic and parking, establishes:

“Article 15. Technical means of monitoring traffic and parking.

1. The City Council of Madrid may employ automated technical means for monitoring traffic and parking, as well as for the automated reporting of violations committed using, among others, the following technical means defined in Annex VI (...)

2. The images, and where applicable videos, captured by these means shall be used as evidence in the automated or personal reporting of violations.

3. The location of fixed means shall be indicated through signage and on the municipal website. Mobile means, by their very nature, do not require signage, without prejudice to the possibility of using variable message panels or other means to inform about areas where these controls occur frequently.”
Consequently, no evidence has been found to substantiate the existence of an infringement of Article 6.1 of the GDPR or any other infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, exercising the investigative and corrective powers it holds.

Thus, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF MADRID and to the complainant.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this

resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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